

Ref No.: BD-ACEPM-SAMCO-LET-017

Date: Wednesday, 26th of November 2025

To: SAMCO National Construction Company
Attention: Eng. Mohammed Sami Mohammed (Project Manager)

Project Name: The Big Business District
Contract/Package: Construction Works of the Civil Works for Buildings B1, B2, B3 and B4

Subject: Re: Response to Variation Instruction No. (BD-ACEPM-SAMCO-VI-0003)

Reference (S):

- 1) **Contractor's Letter Ref. BD-CW-SAMCO-ACE-LET-024 dated 25/11/2025**
- 2) **Employers Variation Instruction Ref. BD-ACEPM-SAMCO-VI-0003**

Dear Sir,

We refer to your letter Ref. no. 1, in which the Contractor rejected the execution of the works instructed under Variation Instruction Ref. no. 2, on the grounds that such works involve MEP activities allegedly outside the Contractor's scope. After reviewing your letter and in accordance with the Contract, Particular Conditions, and the FIDIC Conditions, the Engineer hereby confirms the following:

The Variation Instruction was issued pursuant to Sub-Clause 13.1 [Right to Vary], which grants the Employer full authority to instruct any variation necessary for the proper execution and completion of the Works. Moreover, under Sub-Clause 13.3 [Variation Procedure], the Contractor is legally bound to proceed immediately with implementing the Engineer's instruction and do so without delay or condition, irrespective of any disagreement relating to classification or scope.

Your letter asserts that the Contractor is responsible only for civil works and not for MEP-related activities. However, the Contract, clearly states under Sub-Clause 1.5 that:

"The Works shall include any work which is necessary to satisfy the requirements under the Contract or is implied by the Contract and all works which (although not mentioned in the Contract) are necessary for stability or for the completion, or safe and proper operation of the Works."

In accordance with this binding provision:

The Contractor is required to perform all works essential for stability, safety, continuity, coordination, and completion—whether expressly defined in the Contract or not. This obligation includes all temporary, supporting, interface, or enabling works necessary to ensure safe and proper execution of the Project. Therefore, relying on scope limitations to refuse an Engineer's instruction is inconsistent with Clause 1.5 and does not relieve the Contractor from performance of mandated works.

Accordingly, and in strict alignment with the Contract, the Engineer hereby directs the Contractor to proceed immediately and without reservation with the works instructed under Variation Instruction Ref. no. 2, including any essential supporting or interface works required for stability, continuity, or safe operation.

Your refusal to execute the instructed works is not contractually justified and is hereby formally rejected.

Failure to comply with an Engineer's instruction constitutes a contractual breach and may give rise to actions under Sub-Clause 8.6 [Rate of Progress].

Continued non-compliance will be treated as failure to follow the Employer's lawful instructions and will be recorded accordingly. The Employer reserves the right under the Contract to apply the appropriate contractual remedies and penalties, including those arising under Sub-Clause 4.6 [Co-operation], Sub-Clause 8.6 [Rate of Progress], Sub-Clause 1.5 [Priority of Documents], and any delay damages enforceable under Sub-Clause 8.7 [Delay Damages], in accordance with the procedure for Employer's claims under Sub-Clause 2.5 [Employer's Claims].

Yours faithfully,

Eng. / Abdelaziz Mohammed

Project Manager
ACE Project Management

Attachment(s): N/A

CC:

Eng. Mostafa Gala – Owner representative